

Dr. Anoop Bhalla vs State Of Chhattisgarh on 23 February, 2024

Author: Narendra Kumar Vyas

Bench: Narendra Kumar Vyas

Neutral Citation
2024:CGHC:6435

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AFR

HIGH COURT OF CHHATTISGARH, BILASPUR

Reserved on 22-11-2023
Pronounced on 23-02-2024

CRMP No. 1510 of 2023

Dr. Anoop Bhalla S/o. Late Shri J.D. Bhalla, Aged About 65 Years
R/o. Amol Van Vihar, Airport Road, Near Pts Mana, Raipur,
Chhattisgarh.

---- Petitioner

Versus

1. State Of Chhattisgarh Through Station House Officer, P.S. - Mana Camp, Raipur, Chhattisgarh.
2. Smt. Seema Bhalla, W/o. Dr. Anoop Bhalla, R/o. Amol Van Vihar, Airport Road, Near Pts Mana, Raipur, Chhattisgarh.

---- Respondents

For Petitioner : Shri Apurv Goyal, Advocate For State : Shri Vimlesh Bajpai, Govt. Advocate For Respondent No. 2: Shri Shobhit Mishra, Advocate Hon'ble Shri Justice Narendra Kumar Vyas
C.A.V. ORDER

1. The petitioner has filed present Cr.M.P. under Section 482 of the Cr.P.C. for quashing of the FIR bearing Crime No. 169/2022 registered by the Police Station - Manacamp, Raipur for commission of offence under Section 498A and 342 of the IPC and criminal proceeding of criminal case No. 12855/2022 pending before Chief Judicial Magistrate, Raipur.

2. The prosecution story, in brief, is that the complainant filed a written complaint on 12.07.2022 alleging that the petitioner has physically and mentally tortured her, confined her, as such, an offence under Section 498A and 342 of the IPC has been committed. It has also been contended that the husband assaulted her on 21st March, 2021 on the allegation that she has illicit relationship with her younger brother. The husband has also abused her and her family members and for the reason best known to him he has sent her to her parental house at Bhopal. When she returned to her matrimonial house on 06.06.2022 the house was locked and she was not allowed to enter Neutral

Citation 2024:CGHC:6435 into the house. When she was able to enter into the house, her husband and maid servant have caught of her neck and attempted to throw her out from house. After some time, she went to the first floor of the house and started living separately but proper foodings were not given to her. It is also the case of the prosecution that she was compelled to clean her room and utensils. It is also alleged that the complainant has installed the spy camera in the house. On the basis of the complaint, the FIR has been registered against the petitioner for aforesaid offences.

3. The brief facts as projected by the petitioner are that Petitioner is 66 years old senior citizen, retired IFS officer. He is presently residing in a remote village of Himachal Pradesh. The Respondent No. 2 is residing alone at the huge mansion owned by Petitioner in Raipur. Petitioner has two sons from his first wife. He was separated from his first wife in the year 2003. Since then, he raised and took care of both his sons. In 2011, he started in a live in relationship with Respondent No. 2. The Petitioner and Respondent No. 2 were known to each other for more than a decade. The marriage of Petitioner and Respondent No. 2 was solemnized on 06/06/2021 at Raipur, Chhattisgarh. It has also been contended that all the marriage expenses were borne by the Petitioner. There was no demand or exchange of dowry in the said marriage. The petitioner was around 64 years of age; Respondent No. 2 was around 48 years of age at the time of marriage. Both of them were living cordially until March, 2022, and due to personal differences, the Petitioner started requesting the Respondent No. 2 to amicably part ways.

4. On 3/4/2022, a legal notice was sent by Petitioner to Respondent No. 2 wherein Petitioner highlighted all the comforts and luxuries given to Respondent No. 2 and her family members. He also highlighted that there were problems between them as Respondent No. 2 had become selfish and arrogant as such Petitioner suggested for mutual divorce or else he shall be constrained to file divorce proceedings but no response was given by the Respondent No. 2 to the said legal notice. Thereafter, petitioner filed a petition for judicial separation under Section 10 of Hindu Marriage Act, 1955 on 19/4/2022. However, the said petition was dismissed.

5. It has also been contended that the petitioner has submitted a Neutral Citation 2024:CGHC:6435 complaint before the police station on 11/05/2022, 07/06/2022 08/06/2022 narrating the conduct of the complainant and her behavior towards petitioner and his mother. In the complaint, it has also been mentioned the petitioner apprehends that she may rope petitioner in the offence, as such, he has requested the police authority to enquire into the matter against respondent No. 2 but no action has been taken, therefore, petitioner filed W.P.Cr. No. 553/2022 before this Court wherein he has prayed for registration of FIR against respondent No.2. The said petition was dismissed by this Court on 07/07/2023 with liberty to the petitioner to avail the appropriate remedy before appropriate forum. It has been further contended that the petitioner filed a complaint on 04/07/2022 before the learned Judicial Magistrate First Class under the provisions of Section 5 of the Senior Citizens Act, 2007, immediately after filing of the complaint by the petitioner, FIR has been registered against the petitioner on 12/07/2022.

6. Learned counsel for the petitioner would submit that this is a misuse of Section 498-A by Respondent No. 2 only to harass him. She has made general allegations in the FIR that he used to mentally and physically harass her. It has been stated that she was not allowed to enter the house

and in the next line of the FIR she has stated that she went upstairs in her room. There are only general allegations against the Petitioner with no specific instance. The confinement alleged by Respondent No. 2 was only with respect to Respondent No. 2 not being able to meet the ailing mother of the Petitioner. The Respondent No. 2 was free to move out of the house and to the garden. Respondent No. 2 was given food, clothes, shelter in her room. He would further submit that to constitute an offence under Section 498A, there has to be an element of unlawful demand or the harassment should be of such a nature so as to drive a woman to commit suicide or may result in her death. In the present case, on a plain reading of FIR, none of the ingredients of 498A are met out. He would further submit that there has been delay in filing of FIR. The Respondent No. 2 has alleged that she was not allowed to enter the house on 06/06/2022 but the FIR was lodged on 12/07/2022, i.e. after more than a month.

7. He would further submit that in an email communication in October, Neutral Citation 2024:CGHC:6435 2022, the Respondent No. 2 sent draft terms and conditions for mutual divorce wherein she has demanded an exorbitant sum of Rs 5.5 crores as permanent alimony which clearly shows the oblique motive of the Respondent No. 2. He would further submit that since lodging of the FIR, the Petitioner had to forcefully move out of the house with his mother who was suffering from Alzhiemers and within 10 days, the Petitioner's mother passed away due to the acts of the Respondent No. 2. The Petitioner went in severe depression and used to live in an Aashram at Rishikesh while Respondent No. 2 used to enjoy the lavish lifestyle at Petitioner's mansion in Raipur. She has illegally occupied the house of the Petitioner while the Petitioner is residing in a remote village of Himachal Pradesh, therefore, he would pray for quashing of the entire criminal proceedings. To substantiate his submission he would refer to the judgment of this Court in case of Vikas Sinha vs. Stte of Chhattisgarh {CrMP No. 1261 of 2023 dated 30.10.2023} wherein this Court has quashed the charges levelled against husband under Section 498A of the IPC. He would further rely upon the judgment of the Hon'ble Supreme Court in case of Bhajanlal vs. State of Haryana {1992 Supp (1) SCC 335}, Madhav Rao Scindia vs Shmbaji Rao {(1988) 1 SCC 692}, Kapil Agrawal vs. Sanjay Sharma {(2021) 5 SCC 524}, Anand Kumar Mohatta vs. State (NCT of Delhi) {(2019) 11 SCC 706}, Abhishek vs. State of MP {2023 SCC Online SC 1083}, Mahmood Ali vs. State of UP {Criminal Appeal No. 2341 of 2023 dated 08.08.2023}, Manju Ram Kalita vs State of Assam {(2009) 13 SCC 330}, State of AP vs. Madhusudhan Rao {(2008) 12 SCC 582}, Gurcharan Singh vs. State of Punjab {(2017) 1 SCC 433}, Sushil Kumar Sharma vs. Union of India {(2005) 6 SCC 281}.

8. On the other hand, learned State counsel would submit that considering all the aspects of the matter and the materials collected during the investigation, the criminal proceedings have been initiated therefore, the criminal proceedings initiated against the petitioner are strictly in accordance with law and does not suffer from infirmity or illegality which warrants interference by this Court and would pray for dismissal of the present Cr.M.P.

9. Learned counsel for the respondent No. 2 would submit that there is Neutral Citation 2024:CGHC:6435 sufficient evidence available on record by which, cognizance has been taken against petitioner and after recording evidence of witnesses, charges can be proved. So far as the defence taken by petitioner that the petitioner has already lodged complaint under Senior Citizen Act, 2007 on 04/07/2022 and before it he has made complaint to the police station on 11/05/2022,

07/06/2022 and 11/06/2022 and thereafter the impugned FIR has been lodged with mala fide intention is concerned, the same cannot be a good ground for quashment of proceedings and the grounds which have been raised by the Petitioner are his defence, which can only be considered by leading evidence. At this stage, no case is made out for quashment of FIR as well as charge-sheet and other consequential proceedings initiated against the Petitioner. It has also been contended that from bare perusal of the FIR it is quite vivid that the petitioner has behaved with complainant with cruelty as he has not provided sufficient food and amenities to live a comfortable life and would pray for dismissal of the present Cr.M.P.

10. I have heard learned counsel for the parties and considered the rival submissions of the parties.

11. From bare perusal of the FIR, it is quite vivid that the complainant in the FIR has not mentioned that the complainant was subjected to cruelty on account of demand of dowry. Section 498A IPC relates to the husband subjecting the wife to cruelty. The explanation to 498A of the IPC defines cruelty to mean any willful conduct which is of such a nature as is likely to drive the woman to commit suicide or to cause grave injury or danger to life, limb or health (whether mental or physical) of the woman; or harassment of the woman where such harassment is with a view of coercing her or any person related to her to meet any unlawful demand for any property or valuable security or is on account of failure by her or any person related to her to meet such demand.

12. From perusal of impugned FIR, it appears that only omnibus allegations have been made by the complainant, when she was subjected to cruelty and harassment in regard to demand of dowry has not been mentioned. The complainant alleged that the Petitioner harassed her mentally and physically, no specific allegations have been made against the Petitioner general and can be at best said to Neutral Citation 2024:CGHC:6435 have been made out on account of small skirmishes. The petitioner has also enclosed email wherein the complainant has sent draft terms of agreement wherein she has demanded Rs. 5.5 crores for settlement which was not disputed by the complainant which also shows that the present FIR has been lodged with malafide intention. The Hon'ble Supreme Court in case of Kahkashan Kausar @ Sonam and others vs State of Bihar and Others {(2022) 6 SCC 599} has considered the quashing of the FIR when the allegations are general and omnibus in nature and no specific details as to how and when the complainant was subjected to harassment for dowry by the husband or his family members and has held as under :-

13. Previously, in the landmark judgment of this court in Arnesh Kumar Vs. State of Bihar and Anr., it was also observed:-

"4. There is a phenomenal increase in matrimonial disputes in recent years. The institution of marriage is greatly revered in this country. Section 498-A IPC was introduced with avowed object to combat the menace of harassment to a woman at the hands of her husband and his relatives. The fact that Section 498-A IPC is a cognizable and non-bailable offence has lent it a dubious place of pride amongst the provisions that are used as weapons rather than shield by disgruntled wives. The simplest way to harass is to get the husband and his relatives arrested under this provision. In a quite number of cases, bed-ridden grand-fathers and grand-mothers

of the husbands, their sisters living abroad for decades are arrested."

14. Further in Preeti Gupta & Anr. Vs. State of Jharkhand & Anr. , it has also been observed:-

"32. It is a matter of common experience that most of these complaints under section 498A IPC are filed in the heat of the moment over trivial issues without proper deliberations. We come across a large number of such complaints which are not even bona fide and are filed with oblique motive. At the same time, rapid increase in the number of genuine cases of dowry harassment are also a matter of serious concern.

33. The learned members of the Bar have enormous social responsibility and obligation to ensure that the social fiber of family life is not ruined or demolished. They must ensure that exaggerated versions of small incidents should not be reflected in the criminal complaints. Majority of the complaints are filed either on their advice or with their concurrence. The learned members of the Bar who belong to a noble profession must maintain its noble traditions and should treat every complaint under Neutral Citation 2024:CGHC:6435 section 498A as a basic human problem and must make serious endeavour to help the parties in arriving at an amicable resolution of that human problem. They must discharge their duties to the best of their abilities to ensure that social fiber, peace and tranquility of the society remains intact. The members of the Bar should also ensure that one complaint should not lead to multiple cases.

34. Unfortunately, at the time of filing of the complaint the implications and consequences are not properly visualized by the complainant that such complaint can lead to insurmountable harassment, agony and pain to the complainant, accused and his close relations.

35. The ultimate object of justice is to find out the truth and punish the guilty and protect the innocent. To find out the truth is a herculean task in majority of these complaints. The tendency of implicating husband and all his immediate relations is also not uncommon. At times, even after the conclusion of criminal trial, it is difficult to ascertain the real truth. The courts have to be extremely careful and cautious in dealing with these complaints and must take pragmatic realities into consideration while dealing with matrimonial cases. The allegations of harassment of husband's close relations who had been living in different cities and never visited or rarely visited the place where the complainant resided would have an entirely different complexion. The allegations of the complaint are required to be scrutinized with great care and circumspection.

36. Experience reveals that long and protracted criminal trials lead to rancour, acrimony and bitterness in the relationship amongst the parties. It is also a matter of common knowledge that in cases filed by the complainant if the husband or the husband's relations had to remain in jail even for a few days, it would ruin the

chances of amicable settlement altogether. The process of suffering is extremely long and painful."

15. In *Geeta Mehrotra & Anr. Vs. State of UP & Anr.*, it was observed:-

"21. It would be relevant at this stage to take note of an apt observation of this Court recorded in the matter of *G.V. Rao vs. L.H.V. Prasad & Ors.* reported in (2000) 3 SCC 693 wherein also in a matrimonial dispute, this Court had held that the High Court should have quashed the complaint arising out of a matrimonial dispute wherein all family members had been roped into the matrimonial litigation which was quashed and set aside. Their Lordships observed therein with which we entirely agree that:-

Neutral Citation 2024:CGHC:6435 "there has been an outburst of matrimonial dispute in recent times. Marriage is a sacred ceremony, main purpose of which is to enable the young couple to settle down in life and live peacefully. But little matrimonial skirmishes suddenly erupt which often assume serious proportions resulting in heinous crimes in which elders of the family are also involved with the result that those who could have counselled and brought about rapprochement are rendered helpless on their being arrayed as accused in the criminal case. There are many reasons which need not be mentioned here for not encouraging matrimonial litigation so that the parties may ponder over their defaults and terminate the disputes amicably by mutual agreement instead of fighting it out in a court of law where it takes years and years to conclude and in that process the parties lose their "young" days in chasing their cases in different courts." The view taken by the judges in this matter was that the courts would not encourage such disputes."

16. Recently, in *K. Subba Rao v. The State of Telangana* 8, it was also observed that:-

"6. The Courts should be careful in proceeding against the distant relatives in crimes pertaining to matrimonial disputes and dowry deaths. The relatives of the husband should not be roped in on the basis of omnibus allegations unless specific instances of their involvement in the crime are made out."

17. The above-mentioned decisions clearly demonstrate that this court has at numerous instances expressed concern over the misuse of section 498A IPC and the increased tendency of implicating relatives of the husband in matrimonial disputes, without analysing the long term ramifications of a trial on the complainant as well as the accused. It is further manifest from the said judgments that false implication by way of general omnibus allegations made in the course of matrimonial dispute, if left unchecked would result in misuse of the process of law. Therefore, this court by way of its judgments has warned the courts from proceeding against the relatives and in-laws of the husband when no prima facie case is made out against them.

13. Again the Hon'ble Supreme Court in case of *Abhishek* (supra) has considered the quashment of the criminal proceedings by the High Courts exercising its inherent power under Section 482 of the

Cr.P.C. and has held as under :-

12. The contours of the power to quash criminal proceedings Neutral Citation 2024:CGHC:6435 under Section 482 Cr.P.C. are well defined. In V. Ravi Kumar v.State represented by Inspector of Police, District Crime Branch, Salem, Tamil Nadu [(2019) 14 SCC 568], this Court affirmed that where an accused seeks quashing of the FIR, invoking the inherent jurisdiction of the High Court, it is wholly impermissible for the High Court to enter into the factual arena to adjudge the correctness of the allegations in the complaint.

In Neeharika Infrastructure (P). Ltd. v. State of Maharashtra [Criminal Appeal No. 330 of 2021, decided on 13.04.2021], a 3-Judge Bench of this Court elaborately considered the scope and extent of the power under Section 482 Cr. P.C. It was observed that the power of quashing should be exercised sparingly, with circumspection and in the rarest of rare cases, such standard not being confused with the norm formulated in the context of the death penalty. It was further observed that while examining the FIR/complaint, quashing of which is sought, the Court cannot embark upon an enquiry as to the reliability or genuineness or otherwise of the allegations made therein, but if the Court thinks fit, regard being had to the parameters of quashing and the self-restraint imposed by law, and more particularly, the parameters laid down by this Court in R.P. Kapur v. State of Punjab (AIR 1960 SC 866) and State of Haryana v. Bhajan Lal [(1992) Supp (1) SCC 335], the Court would have jurisdiction to quash the FIR/complaint.

13. Instances of a husband's family members filing a petition to quash criminal proceedings launched against them by his wife in the midst of matrimonial disputes are neither a rarity nor of recent origin. Precedents aplenty abound on this score. We may now take note of some decisions of particular relevance. Recently, in Kakhshan Kausar alias Sonam v. State of Bihar [(2022) 6 SCC 599], this Court had occasion to deal with a similar situation where the High Court had refused to quash a FIR registered for various offences, including Section 498A IPC. Noting that the foremost issue that required determination was whether allegations made against the in-laws were general omnibus allegations which would be liable to be quashed, this Court referred to earlier decisions wherein concern was expressed over the misuse of Section 498A IPC and the increased tendency to implicate relatives of the husband in matrimonial disputes. This Court observed that false implications by way of general omnibus allegations made in the course of matrimonial disputes, if left unchecked, would result in misuse of the process of law. On the facts of that case, it was found that no specific allegations were made against the in-laws by the wife and it was held that allowing their prosecution in the absence of clear allegations against the in-laws would result in an abuse of the process of law. It was also noted that a criminal trial, leading to an eventual acquittal, would inflict severe scars upon the accused and such an exercise ought to be discouraged.

14. In Preeti Gupta v. State of Jharkhand [(2010) 7 SCC 667], this Court noted that the tendency to implicate the husband and Neutral Citation 2024:CGHC:6435 all his immediate relations is also not uncommon in complaints filed under Section 498A IPC. It was observed that the Courts have to be extremely careful and cautious in dealing with these complaints and must take pragmatic realities into consideration while dealing with matrimonial cases, as allegations of harassment by husband's

close relations, who were living in different cities and never visited or rarely visited the place where the complainant resided, would add an entirely different complexion and such allegations would have to be scrutinised with great care and circumspection.

15. Earlier, in *Neelu Chopra v. Bharti* [(2009) 10 SCC 184], this Court observed that the mere mention of statutory provisions and the language thereof, for lodging a complaint, is not the 'be all and end all' of the matter, as what is required to be brought to the notice of the Court is the particulars of the offence committed by each and every accused and the role played by each and every accused in the commission of that offence. These observations were made in the context of a matrimonial dispute involving Section 498A IPC.

16. Of more recent origin is the decision of this Court in *Mahmood Ali v. State of U.P.* (Criminal Appeal No. 2341 of 2023, decided on 08.08.2023) on the legal principles applicable apropos Section 482 Cr. P.C. Therein, it was observed that when an accused comes before the High Court, invoking either the inherent power under Section 482 Cr. P.C. or the extraordinary jurisdiction under Article 226 of the Constitution, to get the FIR or the criminal proceedings quashed, essentially on the ground that such proceedings are manifestly frivolous or vexatious or instituted with the ulterior motive of wreaking vengeance, then in such circumstances, the High Court owes a duty to look into the FIR with care and a little more closely. It was further observed that it will not be enough for the Court to look into the averments made in the FIR/complaint alone for the purpose of ascertaining whether the necessary ingredients to constitute the alleged offence are disclosed or not as, in frivolous or vexatious proceedings, the Court owes a duty to look into many other attending circumstances emerging from the record of the case over and above the averments and, if need be, with due care and circumspection, to try and read between the lines.

17. In *Bhajan Lal* (supra), this Court had set out, by way of illustration, the broad categories of cases in which the inherent power under Section 482 Cr. P.C. could be exercised. Para 102 of the decision reads as follows:

'102. In the backdrop of the interpretation of the various relevant provisions of the Code under Chapter XIV and of the principles of law enunciated by this Court in a series of decisions relating to the exercise of the extraordinary power under Article 226 or the inherent powers under Section 482 of the Code which we have extracted and reproduced above, we give the following categories of cases by way of illustration wherein such power could be exercised either to prevent abuse Neutral Citation 2024:CGHC:6435 of the process of any court or otherwise to secure the ends of justice, though it may not be possible to lay down any precise, clearly defined and sufficiently channelised and inflexible guidelines or rigid formulae and to give an exhaustive list of myriad kinds of cases wherein such power should be exercised.

(1) Where the allegations made in the first information report or the complaint, even if they are taken at their face value and accepted in their entirety do not prima facie constitute any offence or make out a case against the accused.

(2) Where the allegations in the first information report and other materials, if any, accompanying the FIR do not disclose a cognizable offence, justifying an investigation by police officers under Section 156(1) of the Code except under an order of a Magistrate within the purview of Section 155(2) of the Code.

(3) Where the uncontroverted allegations made in the FIR or complaint and the evidence collected in support of the same do not disclose the commission of any offence and make out a case against the accused.

(4) Where, the allegations in the FIR do not constitute a cognizable offence but constitute only a non-cognizable offence, no investigation is permitted by a police officer without an order of a Magistrate as contemplated under Section 155(2) of the Code.

(5) Where the allegations made in the FIR or complaint are so absurd and inherently improbable on the basis of which no prudent person can ever reach a just conclusion that there is sufficient ground for proceeding against the accused.

(6) Where there is an express legal bar engrafted in any of the provisions of the Code or the Act concerned (under which a criminal proceeding is instituted) to the institution and continuance of the proceedings and/or where there is a specific provision in the Code or the Act concerned, providing efficacious redress for the grievance of the aggrieved party.

(7) Where a criminal proceeding is manifestly attended with mala fide and/or where the proceeding is maliciously instituted with an ulterior motive for wreaking vengeance on the accused and with a view to spite him due to private and personal grudge."

14. The petitioner was also charge-sheeted for commission of offence under Section 342 of the IPC which is punishment for wrongful confinement. The wrongful confinement has been defined in Section 340 of the IPC which reads as under :-

Neutral Citation 2024:CGHC:6435 "Whoever, wrongfully restrains any person in such a manner as to prevent that person from proceeding beyond certain circumscribing limits is said wrongfully to confine that person."

15. In the FIR the complainant has said that she was not allowed to enter into the house and she remained outside from the house for whole night which clearly demonstrate that she was allowed to take free movement. Even in the statement recorded under Section 161 of the Cr.P.C. she has taken same stand and she has nowhere stated in her statement that she was confined to one place and her movement was restricted by the petitioner. As such, prima facie there is no material has been collected by the prosecution for involving the petitioner in commission of

offence under Section 342 of the IPC.

16. In the light of aforesaid discussions and the proposition of law and facts mentioned above, this Court is of the considered opinion that even if the entire facts mentioned in the impugned FIR are taken at their face value and accepted in its entirety, prima facie, no offence is made out against the Petitioner under Section 498A and 342 of the IPC. Accordingly, the impugned FIR vide Crime No. 169/2022 registered at Police Station Manacamp, District Raipur is hereby quashed. Petitioner is discharged of charges levelled against him under Section 498-A and 342 of the IPC meaning thereby other subsequent criminal proceedings initiated in connection with Criminal Case No. 12855/2022 pending before the Court of Chief Judicial Magistrate, Raipur are hereby dropped.

17. As a sequel, this petition stands allowed.

18. Let a copy of this order be sent to the trial Court as well as police station concerned for necessary information and compliance.

Sd/-

(Narendra Kumar Vyas) Judge Deshmukh